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Michael Dekhtyar v. Timothy A.

Ratcliff, et al.

Judgement Creditor Michael Dekhtyar's Motion to Compel

Judgment Debtor Timothy A. Ratcliff's Responses and Production of Documents,

Set One and Request for Monetary Sanctions

BACKGROUND

On

February 13, 2024, Plaintiff Michael Dekhtyar ("Plaintiff") filed a Complaint against

Defendants Timothy A. Ratcliff, Shin Ramen Hollywood, Inc., and RTM Inc. On

April 17, 2026, the Court entered Default Judgment as to all Defendants. On

June 12, 2026, Plaintiff filed the instant motion.

DISCUSSION

Plaintiff

moves to compel responses to Judgment Creditor's Demand for Production of

Documents (Post-Judgment) to Judgment Debtor Timothy A. Ratcliff (Set One), and

requests sanctions in the amount of \$1,082.72.

Demand for Production of Documents

Plaintiff

contends that, on April 24, 2026, Plaintiff propounded Demand for Production of

Documents on Defendant. (Dekhtyar Decl., ¶ 5; Ex. 3.) Plaintiff contends that Defendant

did not serve responses or communicate with Plaintiff regarding the Demand.

(Dekhtyar Decl., ¶ 7.) Plaintiff also contends that, on June 1, 2026, he served a notice to Defendant that post-judgment discovery was served on April 24, 2026, and that responses were due no later than May 29, 2026. (Dekhtyar Decl., ¶ 8; Ex. 4.)

In opposition, Defendant contends that he did not receive the Demand due to improper service. (Ratcliff Decl., ¶ 6.) Defendant argues that since the Demand was not properly served, the 30 days to respond never started. Defendant contends that the proof of service shows the deposit of a “GLS Priority Envelope” in a GLS drop box and his receipts are for FedEx “Home Delivery” and UPS “Ground,” which are not the United States mail, not Express Mail, and are not overnight delivery services necessary to satisfy Civil Procedure Section 1013(a) or (c). Moreover, there was no personal delivery and no written consent to electronic service.

In reply, Plaintiff argues that Ratcliff admits actual knowledge of the discovery requests in his email. Plaintiff also argues that Ratcliff refused the mail and that a party cannot defeat service merely by refusing, failing to claim, or avoiding mail. Also, the fact that delivery was accomplished by FedEx or UPS does not prove that the documents were not delivered. Plaintiff also argues that the declaration in support of Ratcliff’s opposition stating nothing was served is self-serving.

“In case of service by Express Mail, the notice or other paper shall be deposited in a post office, mailbox, subpost office, substation, or mail chute, or other like facility regularly maintained by the United States Postal Service for receipt of Express Mail, in a sealed envelope, with Express Mail postage paid, addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by Express Mail; otherwise at that party's place of residence. In case of service by another method of delivery providing for overnight delivery, the notice or other paper shall be deposited in a box or other facility regularly maintained by the express service carrier, or delivered to an authorized courier or driver authorized by the express service carrier to receive documents, in an envelope or package designated by the express service carrier with delivery fees paid or provided for, addressed to the person on whom it is to be served, at the office address as last given by that person on

any document filed in the cause and served on the party making service; otherwise at that party's place of residence.” (Code Civ. Proc., § 1013, subd. (c).)

Here,
the proof of service attached with the Demand was executed on April 24, 2026. (Dekhtyar Decl., Ex. 3.) The proof of service states that Defendant was served by priority mail in a Priority Envelope at 7235 Hollywood Blvd, Apt 320, Los Angeles, CA 90046 and 1655 N. La Brea Ave, Hollywood, CA 90028. (Dekhtyar Decl., Ex. 3.) Defendant concedes that his address of records with the Court is 7235 Hollywood Blvd, Apt 320, Los Angeles, CA 90046. (Ratcliff Decl., ¶ 2.) Defendant also uses this address in the heading of his opposition to this Motion. The FedEx proof of delivery states that the service was delivered on April 25, 2026. (Dekhtyar Decl., Ex. 3.)

Based
on the foregoing, the Court concludes that Defendant was properly served at his address, the address used by Defendant in filing his own opposition, by overnight delivery of mail by FedEx and UPS. Code of Civil Procedure expressly allows for overnight delivery outside of USPS: “the document served by Express Mail or other method of delivery providing for overnight delivery shall be extended by two court days.” (Code Civ. Proc., § 1013, subd. (c).)

Plaintiff
has demonstrated that Defendant has not responded to the Demand and Defendant does contend that he responded to the Demand. Because Defendant has failed to respond to the Demand within the 30 days plus five days for service by mail, the Court grants the motion to compel.

Sanctions

Plaintiff
seeks monetary sanctions in the amount of \$1,000.00 plus \$82.72 for filing cost. Plaintiff contends he is self-represented and does not seek attorney's fees for his own time unless the Court determines such compensation is authorized. Plaintiff contends that Defendant has misused the discovery process and Plaintiff has paid out-of-pocket costs for his noncompliance. Plaintiff has not shown that \$1,000 in monetary sanctions would be reasonable. Additionally, the Court is unclear as to where Plaintiff's request for \$82.72 in costs comes from. However, reviewing the invoice for the Motion, Plaintiff spent \$60 in

filing fees. Thus, the Court will award Plaintiff \$60 for the costs of filing this Motion.

CONCLUSION

The court grants Plaintiff's Motion to Compel Initial Responses to Demand for Production of Documents from Defendant. Defendant is ordered to respond to the Demand for Production of Documents within 10 days of the issuing of this order.

The court denies Plaintiff's request for sanctions but will award Plaintiff \$60 against Defendant for costs associated with the filing of this Motion.

Moving party to give notice.